



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

TO: Mayor Marian J. Orr and members of the City Council

FROM: Charles W. Bloom, AICP

SUBJECT: Declaration of Surplus Property

DATE: July 13, 2020

The attached Resolution declares a portion of Holliday Park as surplus property to allow it to go to public sale in accordance with Wyo. Stat. § 15-1-112(A). If the resolution passes it will authorize the City to advertise the surplus property and for interested parties to respond.

The subject property is located on the northeast corner of Morrie Avenue and Lincolnway within Holliday Park. The property is presently developed with a parking lot and is physically separated by a stone wall on the north and east. The parking lot is typically not utilized for park users and needs substantial upgrades including subgrade reconstruction, repaving, and ADA improvements.

The area proposed for surplus designation is approximately 0.52-acres in size and has not been surveyed. Based on Laramie County Assessor records, the land value in the area is \$9.40 per square foot. Staff estimates the value of this land to be approximately \$212,912. Staff will require that the winning bidder survey the property to clearly delineate the land to be sold. The final purchase price will be based on an appraisal and final square footage of the surveyed lot.

The Governing Body will have the ability to review all bids and can elect to accept one or reject all. Upon acceptance of the bid, staff will commence drafting of a Purchase Agreement that will require review and approval by the Governing Body. The Purchase Agreement will detail the purchaser's responsibility to subdivide the land from the park, provide an appraisal justifying the price, appraised value of the land, and solidify the development proposal.

ant

Date: 7/8/20

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DECLARING AS SURPLUS A CITY-OWNED PROPERTY GENERALLY LOCATED AT THE NORTHEAST CORNER OF MORRIE AVENUE AND EAST LINCOLNWAY, TOGETHER WITH IMPROVEMENTS THEREON, AND AUTHORIZING THE CITY TO PROCEED WITH THE PROCESS TO DISPOSE OF THE PROPERTY PURSUANT TO WYO. STAT. § 15-1-112(A)."

WHEREAS, the City of Cheyenne ("City") is the owner of a 24,000 sq. ft., more or less, property ("Property") generally located at the northeast corner of Morrie Avenue and East Lincolnway as generally shown in Exhibit A which is attached hereto and incorporated herein; and

WHEREAS, the Property is a portion of property within Holliday Park and is partly developed with a parking lot, is isolated from the developed park by a stone retaining wall, is in need of repair and upgrades, and is not necessary for park functionality; and

WHEREAS, in accordance with Wyo. Stat. § 15-1-112(A), the City is required to provide public notice of a proposed sale of the Property, shall request sealed bids proposing a purchase price and proposed use of the property, and has the right to reject all bids if desired; and

WHEREAS, within sixty (60) days of bid award, the winning bidder and the City shall execute a Purchase Agreement which shall require approval by the Governing Body; and

WHEREAS, the Purchase Agreement shall detail subdivision responsibilities to subdivide the land from the park, appraised value of the land, and proposed use of the property and all costs for subdivision and appraisals shall be borne by the winning bidder; and

WHEREAS, it is acknowledged that the exact legal description of the property has not yet been prepared, and if declared surplus, will be surveyed prior to purchase pursuant to the terms of the Purchase Agreement, will not exceed 28,000 sq. ft. in size and will generally be the area shown in Exhibit A; and

WHEREAS, the City, having determined that the Property is not necessary for retention or expansion of City-related interests, desires to declare the aforementioned Property as surplus, and desires to initiate the process for sale of Property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the aforementioned Property generally located at the northeast corner of Morrie Avenue and East Lincolnway, Cheyenne, Wyoming, as generally shown in Exhibit A, together with improvements thereon, is hereby declared as surplus, and the City is authorized to proceed with the bidding process to dispose of the Property pursuant to Wyo. Stat. § 15-1-112(a).

BE IT FURTHER RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that upon completion of the bidding process, the City shall present for consideration by the Governing Body any and all qualified bids received for formal action. The City reserves the right to reject any or all bids.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2020.

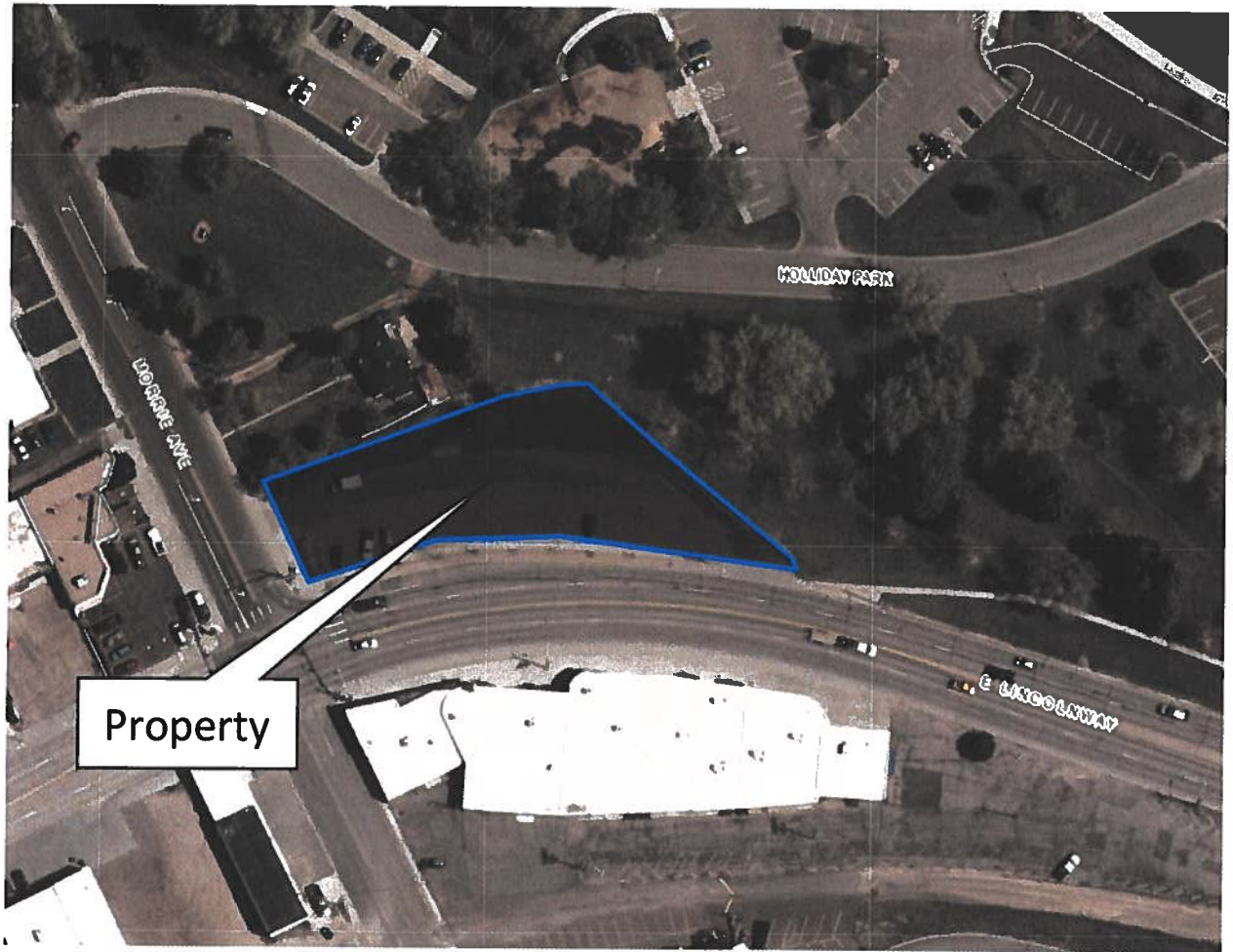
(SEAL)

MARIAN J. ORR, MAYOR

ATTEST:

KRISTINA F. JONES, CITY CLERK

EXHIBIT A



Approximate 0.51-acre property located at the northeast corner of East Lincolnway and Morrie Avenue.